

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 39387/2022

Muhammad Bilal Khalid

Versus

Inspector General of Police Punjab Lahore etc.

J U D G M E N T

Date of hearing:	20.02.2026
Petitioner by:	Mr. Junaid Jabbar Khan, Advocate.
Respondents by:	Mr. Waqar Saeed Khan, Assistant Advocate General, Punjab.

MALIK WAQAR HAIDER AWAN, J:- Through this constitutional petition, following prayer has been made:-

- i. *An appropriate Writ may graciously be issued.*
- ii. *Respondents may kindly be directed to produce original record of interview and final merit list of Constables District Lahore for the judicial review of this Honorable Court.*
- iii. *Respondents may kindly be directed to take fresh interview of the petitioner and allocate marks of interview fairly and thereafter make recommendations of appointment against the post of Constable District Lahore justly fairly and in accordance with law.*
- iv. *Any other better relief, which this Honorable Court deem just and proper may also be awarded to the Petitioner.*

2. Bereft of irrelevant particulars, the petitioner who applied for the post of Constable remained successful in the written test but could not obtain the passing marks as required in interview. Feeling dissatisfied with the disqualification on the strength of interview marks, the petitioner has sought a direction to respondents to reconduct the

interview while fairly allocating the marks and thereafter make recommendations for appointment of the petitioner against the post of Constable.

3. At the outset of the hearing, learned counsel for the petitioner has been confronted with the fact that the matter highlighted in this petition pertains to a policy decision taken by the Government, therefore, no interference can be made, as in the presence of Standing Order No. 06/2015 issued by DIG/Establishment-II for Inspector General of Police, Punjab, Lahore on 16.07.2020 (hereinafter called “**Standing Order**”), this Court can neither change the Standing Order nor reframe the policy with regard to the recruitment of Constables. Learned counsel for the petitioner has further been confronted with the point that a factual controversy has been raised with regard to marking in the interview and this Court ought not to evaluate or judge the subjective assessment made by the Interviewing Committee.

4. Replying to the above queries, learned counsel for the petitioner has tried to satisfy this Court with regarding to maintainability of this constitutional petition by producing copy of Recruitment Policy, 2002 issued by Government of the Punjab, Services and General Administration Department (Regulation Wing). He submits that if total marks in aggregate are considered, the petitioner can be declared successful in the recruitment process. Learned counsel grouses that appointments must be made through a fair, transparent and competitive recruitment process and knocking out the petitioner just on the basis of lesser interview marks offends the fundamental rights guaranteed in Articles 4, 9, 18 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter called “**Constitution**”). Places reliance on Syed Nusrat Jamal and another v. Inspector-General of Police, Punjab Police, Complex, Lahore and 2 others {2007 PLC (C.S.) 208} and Ehsan Ullafi and 3 others v. Inspector-General of Police, Punjab, Lahore and 4 others {2006 PLC (C.S.) 964}.

5. Conversely, learned Law Officer has strenuously opposed the contentions raised by learned counsel for the petitioner and has referred to the Standing Order to highlight that it is mandatory for a candidate to obtain minimum 08 marks to qualify the interview. Learned Law Officer has also made reference to Article 27 of the Police Order, 2002 to emphasize that the Provincial Police Officer and Head of District Police, in appropriate cases, are authorized to regulate all matters of recruitment. Lastly submits that the petitioner has not challenged the policy of the concerned Department with regard to recruitment.

6. Heard. Record perused.

7. Admittedly, through this constitutional petition, the petitioner has not challenged the recruitment policy of concerned department. Even otherwise, it is settled proposition of law that a policy decision of the Government cannot be interfered with by this Court in exercise of its constitutional jurisdiction as it is not the domain of this Court to suggest policies to governments in carrying out their affairs, thus, any interference made by this Court would amount to interfering in a policy decision of the Government, which is not mandated by law. For reference, reliance can be placed on Peshawar Electric Supply Company Ltd. (PESCO and others v. SS Ploypropylene (Pvt.) Ltd., and others (PLD 2023 SC 316), Syed Azam Shah v. Federation of Pakistan through Secretary Cabinet Division, Cabinet Secretariat, Islamabad and another (2022 SCMR 201) and Abdul Hameed and others v. Water and Power Development Authority through Chairman, Lahore and others (2021 SCMR 1230).

8. Even otherwise, this Court cannot assume the role of the Government by taking a decision. In case such an exercise is undertaken by this Court it would mean that it is assuming the role of the executive and such assumption of jurisdiction will be termed to be an act of judicial

over reach. Even otherwise, such interference would violate the doctrine of trichotomy of power as assumption of such role will jeopardize the legitimacy of institutions and undermine constitutional democracy. For reference, reliance can be placed on Dr. Muhammad Saleem v. Government of Balochistan and others (2023 SCMR 2119), Pakistan People's Party Parliamentarians (PPPP) through its Secretary General and 4 others v. Federation of Pakistan through Secretary, Ministry of Law and Justice Islamabad and 4 others (PLD 2022 S.C. 574) and Government of Khyber Pakhtunkhwa through Secretary, Forest, Peshawar and others v. Sher Aman and others (2022 SCMR 406).

9. In the present case, with the mandate given under the Standing Order and strength of Article 27 of the Police Order, 2002, Interviewing Committee evaluated the petitioner and gave him marks as it deemed fit. I am afraid if the arguments of learned counsel for the petitioner are borrowed, the whole structure of civil service would shatter.

10. Although with the passage of time, marks of subjective evaluation (interview) have rightly been decreased, yet the importance of interview remains intact, as it is intended to assess other aspects of personality and suitability which can only be evaluated through a subjective interaction with the candidate.

11. It would be significant to mention here that interview constitutes an essential and integral limb of the recruitment process. Unlike written or physical tests, which merely assess objective competence, the interview enables the competent authority to evaluate suitability, temperament, confidence, communication skills, discipline, and overall personality of a candidate including those attributes which cannot be assessed through mechanical marking alone. Such assessment is necessarily subjective and lies within the exclusive domain of the Interviewing Committee, duly constituted under the Standing Order.

12. So far as the judgments cited by learned counsel for the petitioner are concerned, the same are distinguishable on the facts of this case and, therefore, are of no help to him.

13. For the foregoing reasons, this constitutional petition having no force and substance stands **dismissed**.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
24.02.2026

Abis Ali

APPROVED FOR REPORTING

JUDGE